MUNYATI KUDZAI MUROVE
versus
JANE MUROVE

HIGH COURT OF ZIMBABWE
TAKUVA AND CHIKOWERO JJ
HARARE; 11 and 18 June 2026

Civil Appeal

K Mabaudi, for the applicant
B Zonke, for the respondent

CHIKOWERO J:

[1] The appellant, a 42 year old man, is married and blessed with three children. He is son to the respondent.

[2] The respondent jointly owns certain piece of land being Remainder of Lot 1 Block M of Hatfield Estate situate in the District of Salisbury with her husband, Tapfumanei Christopher Murove. The property is commonly referred to as Number 1 Fern Road, Hatfield. It is owned by them in equal undivided shares.

[3] On 7 April 2026 the Magistrates Court sitting at Harare granted the respondent's application for an order evicting the appellant and all those claiming occupation through him from Number 1 Fern Road, Hatfield Harare. It also set aside the purported lease agreement entered into between Tapfumanei Christopher Murove and the appellant in terms whereof the latter averred that he had the right to occupy the property, as a tenant, up to a certain date in 2028. Finally, the lower court condemned the appellant to pay the respondent's costs of suit.

[4] Aggrieved with the whole judgment rendered by the lower court, the appellant has relied on six grounds of appeal in his endeavour to have it overturned.

[5] However, the appeal turns on whether the lower court misdirected itself in finding that the respondent had not consented to the continued occupation of the property by the appellant.

Put differently, the issue is whether the lower court misdirected itself in finding that Tapfumanei Christopher Murove had permitted the appellant to occupy the property without the consent of the respondent.

[6] The law governing the rights and duties of co-owners is settled in this jurisdiction. In *Masubey* v *Masubey* 1993(2) ZLR 36(H) SMITH J said at 38F:

> "All co-owners are entitled to a share in the whole of the property. No co-owner has a *jus abutendi* in respect of it. A co-owner may not prevent any other co-owner from using the joint property reasonably and in proportion to his undivided share. A co-owner cannot introduce 'an innovation or change in the occupation of the land' without the consent of his co-owners. Similarly, he cannot permit strangers to share in the use of the property without the consent of his co-owners."

See also *Odoom* v *Maphosa and Anor* HB 155/18.

[5] Since the appellant is attacking a factual finding made by the lower court, the onus is on him to satisfy us that the finding is irrational. This the appellant has failed to do.

[6] There is no evidence tending to show that the respondent consented to her husband entering into the purported lease agreement with the appellant. The purported lease agreement does not contain any clause indicating that the respondent, a joint owner of the property, consented to her husband's act of allowing a third party (the appellant) to share in the use of the two roomed cottage on the property until 2028. The purported lease agreement was not witnessed by anybody. It contains no provisions for witnesses' names, addresses and signatures. Although the document claimed that the appellant would pay monthly rentals in the sum of US$200 to his father, who was described as the landlord, there is no evidence on record that any such rentals, or a portion thereof, were ever paid. The document under discussion was only availed to the respondent's legal practitioners pursuant to correspondence authored on behalf of the respondent that the appellant had overstayed his welcome and should vacate the premises failing which eviction proceedings would be instituted against him.

[7] Whether one goes by the appellant's version (that he was in occupation of the property on the basis of the lease agreement entered into between his father and himself) or prefers the respondent's version (that she allowed the appellant to occupy the cottage from 1 September 2023 to 31 December 2023 to afford him an opportunity to secure alternative accommodation since he had been thrown out of his lodgings) the position still remains that the appellant failed

to prove that the respondent consented to his father sharing the use of the jointly owned property with the appellant up to 2028.

[8] In fact, a reading of the appellant's opposing affidavit and his father's supporting affidavit reveals that the two, as males, were prepared to disregard the respondent's rights as a joint owner of the property in question. Para 5 of Tapfumanei Christopher Murove's supporting affidavit is pertinent. It reads:

> "5. I confirm that I entered into a Lease Agreement with the Respondent on the 1st of July 2026 and that when he entered into the two-roomed cottage with his family, the Applicant neither questioned the Lease Agreement nor did she object to the Respondent entering the premises."

There can be no clearer evidence that the respondent did not consent to her enstranged husband's act of sharing the use of the property with the appellant. If the respondent had indeed consented, then the supporting affidavit should have contained details of the where, when and what of that consent. Not to be outdone, the appellant stated in his opposing affidavit:

> "1.2 My father is a co-owner of the property. In fact, as the head of the family and the one who bought the immovable property back in 1991, he was well within his rights to have concluded the Lease Agreement with me."

Might is not right. Gender power is not the same thing as the respondent's consent to Tapfumanei Christopher Murove's sharing the use of the jointly owned property with the appellant until 2028.

[9] Save for the lower court's error in setting aside the lease agreement as one of the parties thereto was not before it and had not been accorded the opportunity to be heard on that score, the appeal is in all other respects meritless.

[10] Punitive costs are exceptional. See *Adam and Co (Pvt) Ltd and Anor* v *Good Living Real Estate (Pvt) Ltd* 2021(1) ZLR 729(S). The respondent fell short of persuading us that such costs are merited in the circumstances of this case. That the respondent incurred costs in opposing the appeal is not an adequate basis for ordering the appellant to pay punitive costs.

ORDER

1. The appeal is allowed in part.
2. Paragraph 1 of the judgment of the lower court is altered to read:

"1. The application to set aside the purported lease agreement entered into between Engineer Tapfumanei Christopher Murove and the respondent be and is dismissed."

3. In all other respects the appeal be and is dismissed.

4. The appellant shall pay the respondent's costs of suit.

CHIKOWERO J: ……

TAKUVA J:…… I agree

Makiya and Partners, Appellant's Legal Practitioners
Mhishi Nkomo Legal Practice, Respondent's Legal Practitioners